

October 16th 2017 Delaware County Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=fPpgPrPo3kU
Publication Date	2017-10-16T20:26:30Z
Target Category	delaware_county

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Municipal Meeting Report: Delaware County Board of Commissioners

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer opened the meeting of the Board of Commissioners of Delaware County, Indiana.
- **Attendance:**
 - **Board Members Present:** Mr. Henry, Mr. Reagan, and Mr. King.
 - **Presiding Officer:** Mr. King (inferred from conduct/roll calls).

3. Preliminary & Procedural Business

- **Approval of Minutes:** *Not explicitly detailed in the transcript text.*

4. Substantive Business & Board Action

- **00:06:12 Ordinance 2017 (Code 28): Creation of Environmental Enforcement Fund**
 - **Sponsor / Presenter:** Health Department representatives.

- **Deliberation Summary:** The board discussed a proposed ordinance to establish an environmental enforcement fund. The fund collects fees (such as a \$100 fee for unfit orders) to cover county recorder costs, board-up/lock-changing operations for hazardous properties (e.g., former meth labs), and to hold court-awarded fines. Officials noted that while \$100 per day is proposed, state code allows significantly higher penalties.
 - **Item-Specific Public Input:** None noted.
 - **Action & Vote Disposition:** Introduced and passed via roll call vote (Ms. Reagan: Yes, Mr. Henry: Yes, Mr. King: Yes).
- **00:08:44 Resolution 2017-040: Tax Sale Certificate Assignment**
 - **Sponsor / Presenter:** County administration / Commissioners.
 - **Deliberation Summary:** A resolution regarding the final determination of tax sale certificates to be assigned to a non-profit corporation. Due to the failure of the applicant to appear, the board recommended tabling the item.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Tabled by Voice Vote (motion and second recorded; formal roll call vote registered as Ms. Reagan: Yes, Mr. Henry: Yes).
- **00:09:23 Department Head Report: Health Department Vehicle Lease**
 - **Sponsor / Presenter:** Jamie Bain, Health Department.
 - **Deliberation Summary:** Bain presented a new vehicle lease quote through Enterprise Fleet. The plan involves turning in two current leased trucks in exchange for three open-ended lease trucks. Annual vehicle turnover and sales are expected to offset costs, reducing net monthly expenses from \$581 per truck to an estimated \$200<U+2013>\$250 per truck. Commissioners confirmed the lease was reviewed with legal counsel.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. Henry: Yes, Mr. Reagan: Yes, Mr. King: Yes).
- **00:10:40 Highway Department Operational Update & Discussion**
 - **Sponsor / Presenter:** Bob (Highway Department / Bob Brook) and Commissioners.
 - **Deliberation Summary:** The board discussed highway maintenance, right-of-way mowing limits, and clogged driveway culverts. Officials clarified that county right-of-way is generally limited to edge-of-pavement to edge-of-pavement, meaning regular cutting/trimming on private property is restricted unless an easement exists or public safety/sight-lines are compromised. Drainage issues caused by blocked driveway culverts and agricultural debris (such as cornstalks from farming operations) were debated, noting homeowners/farmers are primarily responsible for clearing culverts, though severe road degradation may force county intervention.
- **00:30:26 Claims Approval**
 - **Sponsor / Presenter:** County Administration.

- **Deliberation Summary:** Payment claims totaling approximately \$1,193,000, \$113,000, and \$16,000 were presented for approval.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved by roll call vote (Mr. Reagan: Yes, Mr. Henry: Yes, Mr. King: Yes).

5. Open Public Comment / Citizen Forum

- **00:18:53 Ron Bush** (Newtown resident, former home builder/developer)
 - Addressed the highway discussion regarding drainage and culverts, advocating for the mandatory use of silt fencing by farmers near roadways to capture debris and prevent clogged ditches. He also shared personal legal experiences regarding county road right-of-way limits (edge-to-pavement ownership). Commissioners subsequently reminded him of an upcoming 10:00 AM stormwater meeting.
- **00:21:56 Unidentified Speaker / Representative** (Delaware County Prevention Council)
 - Promoted the 22nd annual Delaware County Red Ribbon Week Community Breakfast, hosted by the Delaware County Prevention Council, scheduled for Tuesday, October 24 at 7:30 AM (doors open at 7:00 AM) at the Horizon Center. Highlighted involvement from the Delaware County Pride team comprising 38 students across all eight county high schools.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Commissioners reminded attendees of a scheduled stormwater meeting at 10:00 AM.
- **Adjournment:** A motion to recess/adjourn was made and approved by roll call vote (Mr. Henry: Yes, Mr. Reagan: Yes, Mr. King: Yes).

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